

## □ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

**If you are in immediate danger, call 911.**

You can reach trained, confidential help any time:

- **HUD Housing Counseling** — call 1-800-569-4287
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)

You get to decide what feels safe for you. The steps above are here whenever you are ready.

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## □ Deadlines & Time-Sensitive Items

**Read this first.** Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

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**□ the case is set for April 1st at 9am at halden county court, housing division — DEADLINE MAY HAVE PASSED**

- **Estimated deadline:** 2026-04-01
- **Basis:** Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.
- **Triggering event:** hearing on 2026-04-01
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

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**□ the 14-day notice showed up taped to the door saying i owe \$350 (300 back rent + 50 late fee) and i have 14 days to pay it all or move out. — DEADLINE MAY HAVE PASSED**

- **Estimated deadline:** 2026-03-17
- **Basis:** Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.

- **Triggering event:** notice posted on 2026-03-03
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

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## □ **Date of issuance: March 18, 2026 — DEADLINE MAY HAVE PASSED**

- **Estimated deadline:** 2026-03-25
- **Basis:** Minn. Stat. § 504B.321
- **Triggering event:** served on 2026-03-18
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota eviction hearings are typically held 7–14 days after the summons issues, so your hearing could be as early as this date. Estimated — confirm the exact date with the court or a lawyer. If this hearing window has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014).

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## ⚠ my son marcus is 7 and has asthma and hes been coughing so much worse since like december

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
  - **Triggering event:** incident on 2025-12-01
  - **Jurisdiction:** MN
  - Estimated — confirm the exact date with the court or a lawyer.
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## Executive Summary

This intake found 14 possible legal issues in your state. The main issues are:

1. Eviction for not paying rent.
  2. Breach of the implied warranty of habitability (the promise that a home is livable).
  3. Possible retaliatory eviction (kicking you out for complaining).
- You have an important deadline coming up. At least one deadline has passed. Your case will be on April 1st at 9 am. This will be at Halden County Court, Housing Division. This date is computed as 2026-04-01. You need to check this right away. If you miss deadlines, your case may end. There are safety concerns in your situation. See the safety resources below. The analysis is 75% done. There are 17 questions below. These could make the assessment stronger.

**Completeness Score:** 75%

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## Triage & Routing Recommendations

**Primary Practice Area:** Landlord-Tenant / Housing

**Primary Jurisdiction:** General

**Complexity:** High

**Urgency:** Emergency

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### Ranked Recommendations

#### 1. Landlord-Tenant / Housing (Score: 0.49)

Landlord-Tenant / Housing practice area (50% of claims); mixed jurisdictions (70% concentration); high complexity; emergency urgency

| Factor              | Score |
|---------------------|-------|
| Practice Area Match | 50%   |
| Jurisdiction Match  | 70%   |
| Complexity Score    | 20%   |

#### 2. General Civil (Score: 0.49)

General Civil practice area (50% of claims); mixed jurisdictions (70% concentration); high complexity; emergency urgency

| Factor              | Score |
|---------------------|-------|
| Practice Area Match | 50%   |
| Jurisdiction Match  | 70%   |
| Complexity Score    | 20%   |

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## Action Items

### Documents to Gather

- [ ] **[URGENT]** Element 'Failure to Repair' is not yet supported by any facts
  - **Claim:** Breach of Implied Warranty of Habitability
  - **Element:** Failure to Repair
- [ ] **[URGENT]** Element 'Landlord Duty to Provide Heat' is not yet supported by any facts
  - **Claim:** Failure to Provide Heat
  - **Element:** Landlord Duty to Provide Heat

### Follow-up Steps

- [ ] **[URGENT]** PAST-DUE? Confirm the deadline for: the case is set for April 1st at 9am at halden county court, housing division (estimated 2026-04-01; Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.). **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.
  - **Deadline:** 2026-04-01
- [ ] **[URGENT]** PAST-DUE? Confirm the deadline for: the 14-day notice showed up taped to the door saying i owe \$350 (300 back

rent + 50 late fee) and i have 14 days to pay it all or move out. (estimated 2026-03-17; Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.). **WARNING:** this deadline appears to have **ALREADY PASSED** as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

- **Deadline:** 2026-03-17

- [ ] **[URGENT]** PAST-DUE? Confirm the deadline for: Date of issuance: March 18, 2026 (estimated 2026-03-25; Minn. Stat. § 504B.321). **WARNING:** this deadline appears to have **ALREADY PASSED** as of 2026-07-11. Minnesota eviction hearings are typically held 7–14 days after the summons issues, so your hearing could be as early as this date. Estimated — confirm the exact date with the court or a lawyer. If this hearing window has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014).

- **Deadline:** 2026-03-25

- [ ] **[URGENT]** You reported problems to the city (or an inspector cited your landlord) shortly before the eviction steps started. If a landlord moves to evict soon after a tenant reports code violations, the law may presume retaliation — in Minnesota, Minn.

Stat. § 504B.285/§ 504B.441; other states have an equivalent.

How soon after your report did the eviction notice arrive?

[Authority: Minn. Stat. § 504B.285, subd. 2; § 504B.441

(retaliation defense/penalties)]

- [ ] **[URGENT]** You mentioned holding back rent because the landlord is ignoring repairs. Withholding on your own can be used against you in an eviction — but there is a legal way to do it: in Minnesota you can deposit the rent with the court (rent escrow, Minn. Stat. § 504B.385) and ask the court to order repairs; other states have an equivalent. Have you asked the court about depositing your rent instead of just holding it back? [Authority: Minn. Stat. § 504B.385 (rent escrow); § 504B.425 (remedies); § 504B.161 (covenants of habitability)]
- [ ] **[URGENT]** You said the court papers (summons) were just TAPED to your door. In Minnesota a summons can be posted like that only if the landlord first tried to hand it to you in person and could not find you, and then also mailed you a copy (Minn. Stat. § 504B.331). If those steps were skipped, the service may be defective and can be challenged. Were you ever handed the papers in person, or did anyone mail you a copy? [Authority: Minn. Stat. § 504B.331 (eviction summons service; posting/'nail-and-mail' allowed only after diligent attempts at personal service and if the tenant cannot be found, plus mailing)]
- [ ] **[URGENT]** You mentioned paying extra money (like a cash pet deposit) with no receipt. Deposits are regulated — in Minnesota the landlord must account for them, pay interest, and return them with an itemized statement (Minn. Stat. § 504B.178); other states have an equivalent. A cash payment with no receipt can still count. How much did you pay, when, and do you have any proof (texts, witnesses, bank withdrawal)? [Authority: Minn. Stat. § 504B.178 (security deposits: receipt, interest, return); § 504B.172]
- [ ] **[URGENT]** Your notice appears to give a vague reason (like a 'material lease violation' box with no specifics). A notice usually

must state the specific grounds so you can respond — a vague or defective notice can be challenged. What exactly does the notice say, and does it list any specific violation, amount, or cure period? [Authority: State eviction-notice content requirements (e.g., Minn. Stat. § 504B.321; the notice must state the specific grounds)]

- [ ] **[IMPORTANT]** Potential claim 'Landlord-Tenant Claims' has not been explored with fact mappings
  - **Claim:** Landlord-Tenant Claims
- [ ] **[IMPORTANT]** Potential claim 'Breach of Implied Warranty of Habitability by Home Seller' has not been explored with fact mappings
  - **Claim:** Breach of Implied Warranty of Habitability by Home Seller
- [ ] **[IMPORTANT]** Potential claim 'Breach of Warranty' has not been explored with fact mappings
  - **Claim:** Breach of Warranty
- [ ] **[IMPORTANT]** Potential claim 'Product Liability Claims' has not been explored with fact mappings
  - **Claim:** Product Liability Claims
- [ ] **[IMPORTANT]** Potential claim 'Contract & Quasi-Contract Claims' has not been explored with fact mappings
  - **Claim:** Contract & Quasi-Contract Claims
- [ ] **[IMPORTANT]** Potential claim 'Property & Premises Liability Claims' has not been explored with fact mappings
  - **Claim:** Property & Premises Liability Claims
- [ ] **[IMPORTANT]** Potential claim 'Negligence in Property Management' has not been explored with fact mappings
  - **Claim:** Negligence in Property Management

- [ ] **[IMPORTANT]** Potential claim 'Landlord's Failure to Provide a Warrant of Habitability' has not been explored with fact mappings
  - **Claim:** Landlord's Failure to Provide a Warrant of Habitability
- [ ] **[IMPORTANT]** Potential claim 'Improper Rent Withholding Procedure' has not been explored with fact mappings
  - **Claim:** Improper Rent Withholding Procedure
- [ ] **[IMPORTANT]** Potential claim 'Failure to Document Additional Payment for Pet' has not been explored with fact mappings
  - **Claim:** Failure to Document Additional Payment for Pet
- [ ] **[IMPORTANT]** Potential claim 'Consequences of Lack of Legal Representation' has not been explored with fact mappings
  - **Claim:** Consequences of Lack of Legal Representation
- [ ] **[IMPORTANT]** What is the filing deadline for contesting the eviction notice and attending the scheduled court date?
  - **Claim:** Eviction for Nonpayment of Rent
- [ ] **[IMPORTANT]** What is the applicable statute of limitations for bringing a claim for breach of the implied warranty of habitability in this jurisdiction?
  - **Claim:** Breach of Implied Warranty of Habitability
- [ ] **[IMPORTANT]** Is there a specific housing code or ordinance that outlines the requirements for heating that must be followed and is there a timeline for reporting violations?
  - **Claim:** Failure to Provide Heat
- [ ] **[IMPORTANT]** What evidence must be presented to support a claim of retaliatory eviction, and is there a filing requirement for asserting such a defense?
  - **Claim:** Potential Retaliatory Eviction

- [ ] **[IMPORTANT]** Did the landlord provide the required notices or receipts as outlined in local landlord-tenant law, and what is the timeframe for disputing the lack of receipts?
  - **Claim:** Failure to Provide Notices or Receipts